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California to become first US state to phase out ultra-processed foods from school meals - New law signed by Gavin Newsom will define and ban 'ultra-processed foods of concern', beginning in 2029

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California will become the first state in the US to phase out certain ultra-processed foods from school meals over the next decade.

A new law signed by the governor, Gavin Newsom, on Wednesday will first define, and then ban, ultra-processed foods, the often super-tasty products typically full of sugar, salt and unhealthy fats, from school meals.

California has long led the way on school meals. In 2022, it became the first state in the country to make school meals free for all students, regardless of income. Many districts have implemented farm-to-school programs to bring local foods into school meals. And last year it became the first state in the nation to ban six synthetic food dyes from school meals.

The new legislation requires the state's public health department to adopt rules by mid-2028 defining "ultra-processed foods of concern" and "restricted school foods". Schools have to start phasing out those foods by July 2029, and districts will be barred from selling them for breakfast or lunch by July 2035.

Vendors will be banned from providing the "foods of concern" to schools by 2032.

Newsom, flanked by first partner Jennifer Siebel Newsom and state lawmakers, signed the measure at a middle school in Los Angeles.

"California has never waited for Washington or anyone else to lead on kids' health – we've been out front for years, removing harmful additives and improving school nutrition," he said in a statement. "This first-in-the-nation law builds on that work to make sure every California student has access to healthy, delicious meals that help them thrive."

Legislatures across the country have introduced more than 100 bills in recent months seeking to ban or require labeling of chemicals that make up many ultra-processed foods, including artificial dyes and controversial additives.

Americans get more than half their calories from ultra-processed foods, which have been linked to a host of health problems, including obesity, diabetes and heart disease. However, studies have not been able to prove that the foods directly cause those chronic health problems.

Defining ultra-processed foods has been tricky. The most common definition is based on the four-tier Nova system developed by Brazilian researchers that classifies foods according to the amount of processing they undergo.

Researchers often describe ultra-processed foods as the types of products that contain industrially made ingredients that you won't find in a home kitchen and are often high in fats, starches, sugars and additives.

But some highly processed foods – such as tofu, certain types of whole-grain bread and infant formula – can be healthful. And it's not clear whether it's the processing of the foods or the combination of nutrients such as sugar, fat and salt that leads to poor health outcomes.

US health officials recently launched an effort to come up with a federal definition of ultra-processed foods, saying there are concerns over whether current definitions "accurately capture" the range of foods that may affect health.

California in 2023 passed a first-in-the-nation law to ban four chemicals already prohibited in the European Union and other nations.

More than 20 other states have copied California's ban on those four chemicals, or its ban on six synthetic food dyes in school meals.

Some critics of the ban say it is too broad, but proponents argue the bill only makes common sense. "It really blew my mind how out of step the United States is with the rest of the world when it comes to food safety," Jesse Gabriel, a California state assembly member who sponsored both ultra-processed food bills, previously told the Guardian. "We don't love our kids here in the United States any less than they love their kids in Sweden or Saudi Arabia or South Korea. So why is it that they are taking stronger measures to protect their kids than we are?"

Some school districts in California are already phasing out foods the law seeks to ban.

Michael Jochner spent years working as a chef before taking over as director of student nutrition at the Morgan Hill unified school district about eight years ago. He fully supports the ban."It was really during Covid that I started to think about where we were purchasing our produce from and going to those farmers who were also struggling," he said.

Now they do not serve any ultra-processed foods, and all their items are organic and sourced within about 50 miles of the district, Jochner said. They removed sugary cereals, fruit juices and flavored milks, and deep-fried foods such as chicken nuggets from their menus, he said.

Many of their dishes are made from scratch or semi-homemade, including an item that has long been a staple in US school cafeterias: pizza.

Pizza is also a popular option for students in the Western Placer unified district north-east of Sacramento, where Christina Lawson, the director of food services, has spent the past few years introducing more meals made from scratch.

She estimates up to 60% of school menus in the district are made up of dishes made from scratch, up from about 5% three years ago. They also purchase more foods locally to prepare a wide variety of items, including buffalo chicken quesadillas using tortillas made in nearby Nevada City.

Dr Ravinder Khaira, a pediatrician in Sacramento who supports the law, said the ban will help respond to a surge of chronic conditions in children fueled by poor nutrition.

"Children deserve real access to food that is nutritious and supports their physical, emotional and cognitive development," Khaira said. "Schools should be safe havens, not a source of chronic disease."

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